한국기초과학지원연구원
KOREA BASIC SCIENCE INSTITUTE

جامعة خليفة
Khalifa University

AGREEMENT

FOR ESTABLISHMENT OF KOREA-UAE JOINT R&D TECHNICAL CENTER

BETWEEN

KOREA BASIC SCIENCE INSTITUTE,

REPUBLIC OF KOREA

AND

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY,

UNITED ARAB EMIRATES

This agreement shall take effect from **June 30 2019** (the "Effective Date") by:

The Korea Basic Science Institute of the Republic of Korea, a government funded research institute, having its place of business at 169-148 Gwahak-ro, Yuseong-gu, Daejeon, Republic of Korea, hereafter referred to as KBSI;

and

Khalifa University of Science and Technology, an independent legal entity established by Law number (5) for the year 2017, having its place of business in the UAE Emirate of Abu Dhabi, P.O. Box 127788, hereafter referred to as KU;

hereafter together referred to individually as a Party and jointly as the Parties.

The Parties agree to the following:

1. The Parties entered into a memorandum of understanding, dated 1 November 2018, a copy of which is annexed hereto as Appendix 1, in which the Parties stated their intent to establish and expand the scientific and technological cooperation between the Parties in all fields of science and engineering represented by the Parties and to encourage direct contact and cooperation between research teams and individual researchers (the "MoU").

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2. The Parties wish to establish a joint technical centre called the "Korea-UAE Joint R&D Technical Center" ("KUTC"), further details of which are contained in Appendix 2 hereto.
3. The Parties hereby agree that the KUTC shall be governed by the terms of this Agreement.

1. Definitions and Interpretation

In this Agreement the following expressions have the meaning set opposite:

this Agreement:	this document;
the Effective Date:	30 June 2019;
a Financial Contribution:	the financial contribution to be made by a Party to the KUTC;
Intellectual Property:	patents, trademarks, service marks, registered designs, copyrights, database rights, design rights, know-how, confidential information, applications for any of the above, any similar right recognized from time to time in any jurisdiction, together with all rights of action in relation to the infringement of

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any of the above;

the KUTC Director: the individual appointed from time to time by KBSI, who shall be one (1) of KBSI's representatives on the Steering Committee;

the KUTC Manager: KU's Director of Research Laboratories, as appointed from time to time;

the Steering Committee: the committee nominated by the Parties prior to the first meeting of the committee, comprising two (2) representatives from each Party. KU's Senior Vice President, Research and Development shall be one (1) of KU's representatives and the KUTC Director shall be one (1) of KBSI's representatives.

2. Agreement Duration and the KUTC

2-1. This Agreement will be deemed to have commenced on the Effective Date and will, unless terminated in accordance with this Agreement, continue until either: (1) the closure of the KUTC, as agreed by the Parties in writing; or (2) any later date agreed in writing between the

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Parties. This Agreement will remain in full force and effect whilst the KUTC is active, but will be subject to renewal five (5) years after the Effective Date.

2-2. The KUTC will be established to promote scientific exchange between Republic of Korea and the United Arab Emirates. The KUTC will aim to supply efficient and reliable research facilities and equipment required for joint R&D to researchers of KBSI and KU.

2-3. KBSI and KU support the efficient operation of core research facilities and equipment in the UAE and will operate a laboratory in the UAE for KBSI and KU researchers to participate in joint research. KBSI and KU will work together to facilitate visits by KBSI experts to the KUTC, thereby helping to fulfil the mission of the KUTC.

2-4. As directed by the KUTC Manager, and subject always to the necessary internal and external approvals, KU will provide office and laboratory space for the KUTC, together with administrative support, to enable visiting KBSI experts to stay in the UAE safely and under the appropriate status, such as a visiting scientist of KU.

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2-5. KUTC will initially be installed at KU's Masdar City Campus, comprising: office accommodation of approximately 50 m^2 and laboratory space of approximately 400 m^2. The location of the KUTC can be changed during the term of this Agreement, following written agreement of the Parties. If the Parties agree that the location of the KUTC should change, the Parties shall ensure that there is sufficient time necessary to effect such location change; up to a maximum of nine (9) months.

2-6. The Parties shall enter into a legally-binding definitive agreement for any collaborative project that they may undertake at the KUTC. Such agreement shall include, without limitation, terms relating to intellectual property, academic publication, project funding, confidentiality and termination.

3. KUTC MANAGEMENT

3-1. The Steering Committee will meet on a quarterly basis to review the plans and outcomes of the KUTC.

3-2. Subject to the terms of Clause 8-6, the Steering Committee may make significant decisions regarding amendments to this Agreement.

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3-3. Any member of the Steering Committee may participate in meetings of the Steering Committee by tele-conference, video-conference or any other technology that enables everyone participating in the meeting to communicate interactively and simultaneously with each other.

3-4. The KUTC Director will be responsible:

3-4-1. for overseeing the financial administration of the KUTC at KBSI;

3-4-2. for implementing decisions taken by the Steering Committee that directly relate to KBSI; and

3-4-3. for the KUTC staff dispatched from KBSI to KU.

3-5. The KUTC Manager will be responsible:

3-5-1. to the Steering Committee for the day-to-day management of the KUTC;

3-5-2. for monitoring the progress of the KUTC and reporting such progress to the Steering Committee;

3-5-3. for overseeing the financial administration of the KUTC at KU;

3-5-4. for the day-to-day management of the KUTC staff dispatched from KBSI.

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4. CONTRIBUTIONS OF THE PARTIES

4-1. Each Party will, respectively, pay the labor costs and travel expenses of its own employees participating in the operation of the KUTC.

4-2. KU will make available the pre-existing facilities and equipment for the KUTC, together with suitable office space. Subject to the approval of the Steering Committee, KU may make available different / additional laboratory and/or office space and/or equipment (as specified in Appendix 2) for the KUTC, under terms and conditions to be contained in a separate legal agreement. KBSI will be responsible for the costs associated with the installation and/or operation of any such laboratory and/or office space.

4-3. KU shall not charge KUTC for rent and utilities, including electricity and water use.

5. USE AND EXPLOITATION OF INTELLECTUAL PROPERTY

5-1. No license to use any Intellectual Property is granted or implied by this Agreement except the rights explicitly granted in this Agreement.

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5-2. Background Intellectual Property used in connection with the KUTC shall remain the property of the Party introducing the same.

6. CONFIDENTIALITY

6-1. If a Party (the "Receiving Party") receives Confidential Information from another Party (the "Disclosing Party"), the Receiving Party shall use the Confidential Information for the sole purpose of performing this Agreement and shall use all reasonable efforts to preserve the confidentiality of such Confidential Information. Except that the Receiving Party may disclose, or permit disclosure of, any of the Disclosing Party's Confidential Information to its personnel who:

(a) need to know such Confidential Information in order for the Receiving Party to perform its obligations under this Agreement; and

(b) have been advised of and have agreed to maintain the confidential nature of the Confidential Information on terms no less restrictive than the terms of this Agreement.

6-2. Promptly following a request of the Disclosing Party, the Receiving Party will return to the Disclosing Party or, if the Disclosing Party so requests, destroy all tangible and intangible copies of the Confidential Information, except that the Receiving Party may retain one copy of the Confidential Information in the offices of its legal counsel for record keeping purposes.

6-3. Nothing in this Agreement shall be construed to prevent the Receiving Party from disclosing Confidential Information pursuant to an order of a court or other governmental authority of competent jurisdiction, as long as the Receiving Party promptly notifies the Disclosing Party of its obligation to disclose and provides all reasonable cooperation to the Disclosing Party in any efforts to contest or limit the scope of such order or subpoena.

6-4. A Receiving Party's obligations with respect to use and non-disclosure of the Disclosing Party's Confidential Information will survive until the earliest of the following events:

(a) passage of three (3) years following the expiry of this Agreement;

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(b) publication of the Confidential Information by the Disclosing Party; or

(c) for invention disclosures related to patentable inventions, until a patent application is published.

7. TERMINATION

7-1. Either Party may terminate this Agreement upon ninety (90) days prior written notice to the other Party, save that termination of this Agreement shall not affect the validity of any ongoing definitive agreement.

7-2. Any termination of this Agreement (howsoever occasioned) shall not affect any accrued rights or liabilities of either Party, nor shall it affect the coming into force or the continuance in force of any provision of this Agreement that is expressly or by implication intended to come into force or continue in force on or after termination.

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8. GENERAL

8-1. Each Party warrants to the other Party that it has full power, rights and authority, and has taken all necessary actions and obtained all authorizations, licenses, consents and approvals to allow it to enter into this Agreement and that, to the best of its knowledge, which it provides in the context of the KUTC, shall be owned or properly licensed so as to not infringe the rights of any third party.

8-2. Any notice to be given under this Agreement must be in writing, may be delivered to the other Party by courier, prepaid first class post or fax.

8-3. The Parties' respective representatives for the receipt of notices are as follows:

For Korea Basic Science Institute:

Name: Dr. Hae Jin Kim

Address: 169-148 Gwahak-ro, Yuseong-gu, Daejeon, 34133,

Republic of Korea

Telephone: +82-42-865-3953

For Khalifa University of Science and Technology:

Name: For the attention of the General Counsel

Address: P.O. Box 127788, Abu Dhabi, United Arab Emirates

Telephone: +971 2 401 8000

email: general.counsel@ku.ac.ae

8-4. Neither of the Parties may assign or transfer this Agreement as a whole, or any of this rights or obligations under it, without first obtaining the written consent of the other Party. That consent may not be unreasonably withheld or delayed.

8-5. If the whole or any part of any provision of this Agreement is void or unenforceable in any jurisdiction, the other provisions of this Agreement, and the rest of the void or unenforceable provision, will continue in force in the jurisdiction, and the validity and enforceability of that provision in any other jurisdiction will not be affected.

8-6. No variation or amendment of this Agreement will be effective unless it is made in writing and signed by each Party's duly authorized representative.

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8-7. This Agreement is governed by, and is to be construed in accordance with, the laws of England and Wales.

8-8. The Parties shall refer any disputes arising under or in connection with this Agreement, which cannot be resolved by amicable discussions, to arbitration by a single arbitrator jointly appointed by the Parties.

IN WITNESS WHEREOF, each of the Parties hereto has caused this Agreement to be executed in duplicate in English.

Done in the United Arab Emirates, on **26 November 2019**.

For	For
Korea Basic Science Institute	Khalifa University of Science and Technology
Republic of Korea	United Arab Emirates
Hyung-Shik Shin	
Dr. Hyung Sik Shin	Dr. Arif Sultan Al Hammadi
President	Executive Vice-President

Appendix 1

Copy of MoU, dated 1 November 2018

جامعة خليفة
Khalifa University

KBSI
한국기초과학지원연구원
KOREA BASIC SCIENCE INSTITUTE

MEMORANDUM OF UNDERSTANDING

BETWEEN

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY,

UNITED ARAB EMIRATES

AND

KOREA BASIC SCIENCE INSTITUTE,

REPUBLIC OF KOREA

This Memorandum of Understanding ("MoU") is entered into on November 1 2018 by:

Khalifa University of Science and Technology, an independent legal entity established by Emiri decree number (5) for the year 2017, having its place of business in the UAE Emirate of Abu Dhabi, P.O. Box 127788, hereafter referred to as;

and

The Korea Basic Science Institute of the Republic of Korea, a government funded research institute, having its place of business at 169-148 Gwahak-ro, Yuseong-gu, Daejeon, Republic of Korea, hereafter referred to as KBSI;

hereafter together referred to individually as a Party and jointly as the Parties.

CONSIDERING that KBSI is a research institute performing R&D activities on analytical science, managing national R&D infrastructure, and nurturing experts in instrumentation, and that KU is a university producing world leaders and critical thinkers in science and engineering;

DESIRING to promote mutual interests based on equality and mutual benefits through cooperation in the field of science and technology;

RECOGNIZING that such cooperation shall promote activities related to research and development and support a friendly relationship between the Parties.

The Parties agree to the following:

Article I. Objectives

The purpose of this MoU is to establish and expand the scientific and technological cooperation between the Parties in all fields of science and engineering represented by the Parties.

The Parties will encourage direct contact and cooperation between research teams and individual researchers.

The Parties agree that this MoU shall be used to facilitate discussion only and shall not be deemed to create any right or obligations for, or on behalf of, either Party.

Article II. Scope of Cooperation

The cooperation under this MoU may include but is not limited to the following:

1. Establishment of a Korea-UAE Joint R&D Technical Center;
2. Exchange of personnel for research visits and to facilitate the development and exchange of scientific knowledge;

3. Promotion of collaborative research projects;

4. Joint workshops and symposia on topics of mutual interest.

1. Establishment of a Korea-UAE Joint R&D Technical Center

The Parties agree to use their reasonable efforts to establish a Korea-UAE Joint R&D Technical Center at KU (the Technical Centre) in 2019, based on the agreement made between the Korean and UAE governments in March 2018; to achieve such objective the Parties intend to enter into a definitive agreement relating to the Technical Center prior to 31 March 2019 (the Definitive Agreement).

The Technical Center will house KBSI technical staff that will provide expertise for the utilization of research laboratory equipment that is under management of the KU Research Laboratories Department. The specific research equipment that will be included in the Technical Center scope will be defined by a "Working Committee" organized by the Parties, and finalized in a definitive agreement between the Parties.

2. Exchange of Research Personnel

The Parties will exchange research personnel in the fields of mutual

interests. KBSI commits to providing research staff with expertise in operation of equipment agreed by a "Working Committee". Other personnel who may be exchanged between the Parties shall be decided on a case-by-case basis after mutual consultation, before reaching separate written agreements.

3. Promotion of Collaborative Research Projects

The Parties are interested in promoting collaborative research in fields of mutual scientific interest, as well as exchanging the results of such research and development activities. The subject and content of all such activities, including the management of intellectual property rights, will be discussed and reviewed in advance through mutual consultation, before reaching separate written agreements.

4. Joint Workshops/Symposia

The Parties shall collaborate on holding workshops/symposia in areas of mutual interest. The themes, dates, and venues for the workshops shall be decided and agreed upon by the Parties.

Article III. Confidentiality and Publicity

The Parties undertake to keep all information communicated under this MoU or their collaboration strictly confidential (Confidential Information) and will not disclose Confidential Information to any third parties without the prior written approval of the other Party.

The provisions of this Article III shall not apply to any Confidential Information which:

(a) at the time of supply is in the public domain;

(b) subsequently comes into the public domain, except through breach of the undertakings set out in this MoU;

(c) is already in the lawful possession of one Party (as evidenced by written records) prior to its supply by the other Party;

(d) subsequently comes lawfully into the possession of one Party from a third party who does not owe the other Party an obligation of confidence in relation to it;

(e) is independently developed without use of the other Party's Confidential Information; or

(f) is required to be disclosed by law, regulation or any governmental

or competent regulatory authority, as long as and to the extent reasonably practicable the disclosing Party supplies a copy of the required disclosure to and consults in advance with the other Party of the relevant Confidential Information on the proposed form, timing, nature and purpose of the disclosure.

The Parties shall co-ordinate all public statements and other disclosures with regard to this MoU. Neither Party may enter into any publicity regarding this MoU unless it receives prior written permission from the other Party, which shall not be unreasonably withheld.

Article IV. Expenses

Cooperation activities under this MoU are subject to and dependent upon the funding and personnel available to the Parties. Financial arrangements shall be negotiated on a case-by-case basis, and the Parties shall agree in separate written agreements before the commencement of any activity.

Article V. Entry into Force, Duration and Termination

The MoU shall enter into effect upon the date of signature by the Parties and shall remain in effect for a period of five (5) years from the Effective Date unless either Party notifies the other of its intention to terminate the MoU. Such notification shall be made in writing at least three (3) months in advance.

The Parties intend to enter into the Definitive Agreement relating to the Technical Center prior to 31 March 2019. In the event that the Parties do not execute the Definitive Agreement by such date either Party shall be entitled to terminate this MoU forthwith.

The MoU may be extended by mutual written agreement of the Parties at least three (3) months prior to the expiration of said five (5) year period.

Article VI. Modifications or Amendments

Modifications or amendments to the MoU shall be made by written agreement between the Parties. Where amendments are made, the amended part shall be incorporated into this MoU.

Article VII. Interpretation of Terms

In the event that doubts arise in the interpretation of the provisions of this MoU and problems about matters not described therein, the Parties shall consult with each other and settle them amicably in the spirit of this MoU.

Article VIII. Applicable Law

This MoU shall be governed by, and be interpreted in accordance with, the laws of the defender in any action.

Article IX. General

Save as otherwise provided in this MoU, or as otherwise specifically agreed in writing by the Parties after the date of this MoU, each Party shall pay the costs and expenses incurred by it in connection with the entering into and performance of this MoU.

This MoU constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersede all prior

communications and agreements, whether oral or written, relating to such subject matter.

A person who is not a party to this MoU shall have no right to enforce any of its terms.

If any provision of this MoU is held to be invalid or unenforceable, that provision shall (so far as it is invalid and unenforceable) be given no effect and shall be deemed not to be included in this MoU, but without invalidating any of the remaining provisions.

The relationship of the Parties hereunder is one of independent contractors and nothing contained in this MoU shall be construed to make either Party a joint venture, principal, agent or employee of the other nor shall this MoU constitute, create or give effect to a joint venture, partnership or formal business organization of any kind. Accordingly, no Party has the power to bind, act for or obligate another Party in any manner whatsoever.

IN WITNESS WHEREOF, each of the Parties hereto has caused this MoU to be executed in duplicate in English.

Done in the United Arab Emirates, on November 1, 2018.

For
Khalifa University
of Science and Technology
United Arab Emirates

Dr. Arif Sultan Al Hammadi
Executive Vice-President

For
Korea Basic Science Institute

Republic of Korea

Kwang-Sik Lee

Dr. Kwang Sik Lee
President

Appendix 2

Overview of Korea-UAE Joint R&D Technical Center and available equipment

1. Objective

The following section lists the location and the equipment hosted that should be considered under the Agreement.

2. CORE Lab Descriptions

ID	Laboratory Name	Area m2
146	Microscope sample preparation	44
339	Materials Testing	164
341	Electron Microscopy Masdar	170

3. Electron Microscopy Laboratory

List of equipment

AFM Asylum
AFM CSI
Helios NanoLab
Horiba LabRAM HR Evolution
Nova NanoSEM
Quanta 250 ESEM (Masdar)
Quanta 3D FIB
SEM JEOL 7610F
Tecnai TEM 200kV
Titan TEM 300kV
Witec Alpha 300 RAS

4. Material Testing Laboratory

List of equipment

Bruker D2 Phaser XRD
Bruker Vertex 80v FT-IR
NETZSCH High temperature DSC
NETZSCH High Temperature TGA
XRD PANalytical Empyrea